

MANILA LAW COLLEGE | J.D. PROGRAM

CRIMINAL PROCEDURE | FIRST SEMESTER, FIRST YEAR

SELECTED CASE DIGESTS & PROCEDURAL IMPACT ANALYSES

Focus Topics: Rule 110 (Topics 8, 9, 11, 12, 14, & 15) — Week 6 Coverage

Structured in ALAC Format (Answer, Legal Basis, Analysis, Conclusion)
with Comprehensive Procedural Resolution Syntheses

SELECTED 7 CASES OVERVIEW & CORE PROCEDURAL RULINGS

Topic & Provision	Case Title & Citation	Core Procedural Takeaway
Topic 8: Date of Commission of the Offense	Case 1: People of the Philippines v. Rael Delfin (July 9, 2014)	Date of Commission / Variance Between Allegation and Proof / Scope of Opemia Doctrine
Topic 9: Designation of the Offense	Case 2: Norma Matrido v. People of the Philippines (July 13, 2009)	Designation of Offense / Juridical vs. Material Possession / Conviction of Qualified Theft on Estafa Information
Topic 9: Designation of the Offense	Case 3: People of the Philippines v. Guillermo Lomaque y Senon (June 5, 2013)	Designation of Offense / Recital of Facts Controls / Rape by Sexual Assault vs. Acts of Lasciviousness
Topic 11: Qualifying and Aggravating Circumstances	Case 4: People of the Philippines v. Bartolome Tampus and Ida Montesclaros (June 16, 2009)	Qualifying and Aggravating Circumstances / Mandatory Specific Allegation / Accomplice Liability
Topic 12: Amendment and Substitution of Complaint or Information	Case 5: Eduardo G. Ricarze v. Court of Appeals, People of the Philippines, Caltex Philippines, Inc., and PCIBank (February 9, 2007)	Amendment of Information / Change of Private Complainant / Formal Amendment Before Plea
Topic 14: Venue of Criminal Actions	Case 6: Vicente Foz, Jr. and Danny G. Fajardo v. People of the Philippines (October 9, 2009)	Venue is Jurisdictional / Libel under Article 360, RPC / Fatal Defect in Information
Topic 15: Intervention of Offended Party	Case 7: Lee Pue Liong a.k.a. Paul Lee v. Chua Pue Chin Lee (August 7, 2013)	Intervention of Private Offended Party / Private Prosecutor / Public Crimes / Perjury

TOPIC 8: DATE OF COMMISSION OF THE OFFENSE

Governing Provision / Procedural Framework: Rule 110, Section 11; Rule 110, Section 14; Rule 120, Section 4

CASE NO. 1: People of the Philippines v. Rael Delfin

Citation: G.R. No. 201572, citing People v. Opemia, 98 Phil. 698 | Date: July 9, 2014 | Ponente: Del Castillo, J.

Topic Focus: Date of Commission / Variance Between Allegation and Proof / Scope of Opemia Doctrine

I. FACTS

Rael Delfin was charged with Murder before the Regional Trial Court (RTC) of Malabon/Navotas for the fatal shooting of Emilio Enriquez. The original Information alleged that the shooting occurred 'on or about September 27, 2000.' During trial, prosecution eyewitnesses testified that the fatal shooting actually took place in the early morning of September 28, 2000. In response, the prosecution moved to amend the Information to reflect the true date as September 28, 2000. The defense strongly objected, invoking the doctrine in People v. Opemia (98 Phil. 698) and asserting that the variance prejudiced Delfin's alibi defense and constituted an impermissible substantial amendment after arraignment. The trial court allowed the amendment and subsequently convicted Delfin of Murder, which the Court of Appeals affirmed.

II. ISSUE

Whether the discrepancy between the date alleged in the Information (September 27, 2000) and the date established by proof (September 28, 2000) warranted acquittal or constituted an impermissible substantial amendment under Rule 110, Section 14.

III. RULING (ALAC METHOD)

A – ANSWER / ASSERTION: NO. The amendment was merely formal and permissible because time/date is not an essential element of the crime of Murder, and a one-day variance did not prejudice the substantial rights or alibi of the accused.

L – LEGAL BASIS / APPLICABLE LAW: Rule 110, Section 11 (Date of commission of offense); Rule 110, Section 14 (Amendment of Information); Article 248, Revised Penal Code; *People v. Opemia* (distinguished); *People v. Molero*. Rule 110, Section 11 explicitly provides that it is not necessary to state the precise date in the Information unless it is a material ingredient of the offense.

A – ANALYSIS & APPLICATION: The Supreme Court clarified the true import of *People v. Opemia*. In *Opemia*, the prosecution sought to amend the Information to change the date of cattle rustling from 1947 to 1952—a massive disparity of five (5) full years that radically impaired the defendant's alibi and deprived him of a fair opportunity to defend. In contrast, for the crime of Murder, time is not an essential statutory element. The variance of a single day (September 27 vs. September 28) did not alter the nature of the offense, did not change the identity of the victim or the locus criminis, and did not introduce unexpected charges. The amendment was purely formal under Rule 110, Section 14, causing no prejudice to the accused's rights.

C – CONCLUSION & DISPOSITION: WHEREFORE, the Decision of the Court of Appeals affirming the conviction of appellant Rael Delfin for the crime of Murder is AFFIRMED.

IV. HOW CRIMINAL PROCEDURE EFFECTIVELY RESOLVED THE CASE

Procedural Resolution & Systemic Impact: Criminal procedure establishes a functional, common-sense threshold between formal corrections and prejudicial substantive amendments (Rule 110, Sec. 11 & 14). By clarifying that *People v. Opemia* applies only to extreme, multi-year temporal shifts that completely undermine pre-existing defenses, the Court ensured that clerical single-day variances cannot be used as technical escape hatches in violent felony prosecutions.

TOPIC 9: DESIGNATION OF THE OFFENSE

Governing Provision / Procedural Framework: Rule 110, Section 8; Rule 120, Section 4; Articles 308, 310, & 315, RPC

CASE NO. 2: Norma Matrido v. People of the Philippines

Citation: G.R. No. 179061, 592 SCRA 534 | Date: July 13, 2009 | Ponente: Carpio Morales, J.

Topic Focus: Designation of Offense / Juridical vs. Material Possession / Conviction of Qualified Theft on Estafa Information

I. FACTS

Petitioner Norma Matrido, working as a credit assistant for Empire Sales and Marketing, was tasked with receiving sales collections remitted by marketing agents and depositing them into the company's bank account. Instead of depositing the money, she converted and misappropriated P208,000.00 for her personal use. An Information was filed against her specifically designating the crime as 'Estafa with Grave Abuse of Confidence' under Article 315(1)(b) of the RPC. However, the body of the Information accurately narrated her employment duties, her receipt of cash collections, and the unlawful taking of company funds. After trial, the RTC convicted her of QUALIFIED THEFT instead of Estafa. The CA affirmed. Matrido appealed, asserting that convicting her of Qualified Theft under an Information captioned 'Estafa' violated her constitutional right to be informed of the charge.

II. ISSUE

Whether an accused charged under an Information designated as 'Estafa' may be validly convicted of 'Qualified Theft' pursuant to the Variance Doctrine under Rule 120, Section 4.

III. RULING (ALAC METHOD)

A – ANSWER / ASSERTION: YES. Under Rule 110, Section 8 and Rule 120, Section 4, the factual narrative in the body of the Information controls. An employee acquiring mere physical (material) possession commits Theft, not Estafa, upon misappropriation.

L – LEGAL BASIS / APPLICABLE LAW: Rule 110, Section 8 (Designation of the offense); Rule 120, Section 4 (Judgment in case of variance); Articles 308, 310, and 315(1)(b), Revised Penal Code; *Santos v. People*; *People v. Mercado*.

A – ANALYSIS & APPLICATION: The Supreme Court underscored the critical legal distinction between the possession transferred in Estafa versus Theft:

1. In Estafa, the offender receives both material (physical) AND *juridical possession*—a possession that gives the transferee a legal right over the thing which they may assert even against the owner.
2. In Theft, an employee receiving cash or goods on behalf of an employer acquires only *material/physical possession*. Juridical possession remains perpetually with the employer.

Because Matrido was a mere credit clerk, her custody was purely material. Her conversion constituted Qualified Theft with grave abuse of confidence. Under Rule 120, Section 4, the variance between the designation 'Estafa' and the proved crime 'Qualified Theft' does not bar conviction because all the factual elements of Qualified Theft were explicitly pleaded in the body of the Information.

C – CONCLUSION & DISPOSITION: WHEREFORE, the Decision of the Court of Appeals convicting petitioner Norma Matrido of Qualified Theft is AFFIRMED WITH MODIFICATION.

IV. HOW CRIMINAL PROCEDURE EFFECTIVELY RESOLVED THE CASE

Procedural Resolution & Systemic Impact: The Variance Doctrine (Rule 120, Sec. 4) prevents form from triumphing over substance in criminal justice. By holding that the factual narrative in the Information governs over erroneous legal labels (Rule 110, Sec. 8), procedural rules prevent corporate embezzlers from escaping punishment on fine jurisdictional distinctions between juridical and material possession.

CASE NO. 3: People of the Philippines v. Guillermo Lomaque y Senon

Citation: G.R. No. 189297 | Date: June 5, 2013 | Ponente: Leonardo-De Castro, J.

Topic Focus: Designation of Offense / Recital of Facts Controls / Rape by Sexual Assault vs. Acts of Lasciviousness

I. FACTS

Guillermo Lomaque was charged before the Regional Trial Court with multiple criminal counts of sexual abuse committed against his minor stepdaughter (AAA). In one of the Informations, the prosecutor designated the offense in the caption as 'Acts of Lasciviousness.' However, in the narrative body of the Information, the prosecutor specifically described that the accused, with force and intimidation, inserted his finger into the genital organ of AAA against her will. The trial court convicted Lomaque of Rape by Sexual Assault under Article 266-A(2) of the RPC. On appeal, Lomaque argued that his conviction for Rape by Sexual Assault violated due process because the Information's heading designated the crime only as Acts of Lasciviousness.

II. ISSUE

Whether the accused was properly convicted of Rape by Sexual Assault when the heading designated the crime as Acts of Lasciviousness but the body specifically alleged digital penetration of the victim's genitalia.

III. RULING (ALAC METHOD)

A – ANSWER / ASSERTION: YES. The nature and character of the crime charged are determined exclusively by the recital of facts in the body of the Information, which fully established the offense of Rape by Sexual Assault.

L – LEGAL BASIS / APPLICABLE LAW: Rule 110, Section 8 (Designation of the offense); Rule 120, Section 4; Article 266-A, paragraph 2 of the Revised Penal Code (as amended by the Anti-Rape Law of 1997, R.A. No. 8353).

A – ANALYSIS & APPLICATION: The Supreme Court reaffirmed the bedrock procedural principle: the caption or title given by the drafting prosecutor is a mere legal conclusion. What dictates the offense is the narrative of ultimate facts in the body. Inserting a finger into the genital organ of a woman by means of force, threat, or intimidation is the precise statutory definition of Rape by Sexual Assault under Article 266-A(2). Because the Information clearly narrated digital penetration accompanied by force, the accused was fully apprised of the exact nature and cause of the accusation. He had full opportunity to cross-examine and defend against those factual allegations. The trial court correctly convicted him of Rape by Sexual Assault.

C – CONCLUSION & DISPOSITION: WHEREFORE, the Decision of the Court of Appeals is AFFIRMED. Appellant Guillermo Lomaque is found guilty of Rape by Sexual Assault and sentenced to the appropriate penalty under law.

IV. HOW CRIMINAL PROCEDURE EFFECTIVELY RESOLVED THE CASE

Procedural Resolution & Systemic Impact: Criminal procedure guarantees that procedural due process is rooted in factual reality rather than clerical titles (Rule 110, Sec. 8). By holding that the factual narration of digital penetration overrides an erroneous caption of 'Acts of Lasciviousness,' procedural law ensures that severe sexual offenses are adjudicated according to the true gravity of the acts committed.

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TOPIC 11: QUALIFYING AND AGGRAVATING CIRCUMSTANCES

Governing Provision / Procedural Framework: Rule 110, Sections 8 & 9, 2000 Revised Rules of Criminal Procedure

CASE NO. 4: People of the Philippines v. Bartolome Tampus and Ida Montesclaros

Citation: G.R. No. 181084 | Date: June 16, 2009 | Ponente: Nachura, J.

Topic Focus: Qualifying and Aggravating Circumstances / Mandatory Specific Allegation / Accomplice Liability

I. FACTS

Bartolome Tampus and Ida Montesclaros (the mother of the victim) were charged in two criminal cases for the rape of 14-year-old victim 'ABC.' In Criminal Case No. 013324-L, the Information alleged that Tampus had carnal knowledge of ABC while she was in a deep slumber, with the active consent, permission, and assistance of her mother, Ida. During trial, the prosecution presented evidence establishing that the offense was attended by the aggravating circumstances of nighttime and dwelling. The trial court appreciated these aggravating circumstances to increase the penalty. On appeal, appellant Ida Montesclaros argued that the trial court erred in considering nighttime and dwelling because they were NOT alleged in the Information.

II. ISSUE

Whether aggravating circumstances (such as nighttime and dwelling) can be appreciated against an accused when they were proven by evidence at trial but were NOT specifically alleged in the Information.

III. RULING (ALAC METHOD)

A – ANSWER / ASSERTION: NO. Under Sections 8 and 9 of Rule 110 of the 2000 Revised Rules of Criminal Procedure, aggravating circumstances CANNOT be appreciated to increase the penalty unless specifically alleged in the Information.

L – LEGAL BASIS / APPLICABLE LAW: Sections 8 and 9, Rule 110 of the 2000 Revised Rules of Criminal Procedure; Article 14 & 64, Revised Penal Code; *People v. Mendoza*.

Rule 110, Sec. 9 mandates: 'The qualifying and aggravating circumstances must be stated in ordinary and concise language and not necessarily in the language used in the statute, but in terms sufficient to enable a person of common understanding to know the qualifying and aggravating circumstances...'

A – ANALYSIS & APPLICATION: The Supreme Court underscored the strict, mandatory character of the 2000 Revised Rules of Criminal Procedure. Prior to the 2000 Rules, generic aggravating circumstances proven at trial could be appreciated even if unalleged. However, Sections 8 and 9 of Rule 110 completely overhauled this practice to protect constitutional notice: ALL qualifying and aggravating circumstances must now be expressly and specifically alleged in the Information. If an aggravating circumstance is omitted from the Information, it is legally non-existent for sentencing purposes, even if established by overwhelming evidence at trial. Since nighttime and dwelling were not alleged, the trial court erred in appreciating them against the appellant.

C – CONCLUSION & DISPOSITION: WHEREFORE, the Decision of the Court of Appeals is AFFIRMED WITH MODIFICATION. Appellant Ida Montesclaros is convicted as an accomplice in Rape and sentenced to an indeterminate penalty without appreciating the unalleged aggravating circumstances.

IV. HOW CRIMINAL PROCEDURE EFFECTIVELY RESOLVED THE CASE

Procedural Resolution & Systemic Impact: This case exemplifies the constitutional discipline enforced by Rule 110, Sections 8 and 9. By creating an absolute procedural bar against unalleged aggravating factors, criminal procedure prevents trial-by-ambush and guarantees that an accused faces enhanced penal liabilities solely on matters formally charged prior to trial.

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TOPIC 12: AMENDMENT AND SUBSTITUTION OF COMPLAINT OR INFORMATION

Governing Provision / Procedural Framework: Rule 110, Section 14; Rule 110, Section 12

CASE NO. 5: Eduardo G. Ricarze v. Court of Appeals, People of the Philippines, Caltex Philippines, Inc., and PCIBank

Citation: G.R. No. 160451 | Date: February 9, 2007 | Ponente: Callejo, Sr., J.

I. FACTS

Eduardo G. Ricarze, a collector-messenger for City Service Corporation assigned to Caltex Philippines, Inc., forged the signatures of authorized Caltex officers on several commercial checks payable to a third party (Philippine Metal Corporation) and successfully encashed them. An Information for Estafa through Falsification of Commercial Documents was originally filed naming 'Caltex Philippines, Inc.' as the private offended party. Before Ricarze could be arraigned, the prosecution discovered that Philippine Commercial and Industrial Bank (PCIBank) had already re-credited Caltex's bank account, making PCIBank the actual bearer of the financial loss. The prosecution filed an Amended Information substituting 'PCIBank' as the private complainant. Ricarze objected, claiming that changing the private complainant was an impermissible substantial amendment that changed the identity of the victim.

II. ISSUE

Whether amending the Information before plea to substitute or correct the name of the private offended party in a crime against property constitutes a formal or substantial amendment under Rule 110, Section 14.

III. RULING (ALAC METHOD)

A – ANSWER / ASSERTION: The amendment is purely FORMAL and validly allowable before plea because it does not alter the nature of the crime, the manner of commission, or prejudice any defense of the accused.

L – LEGAL BASIS / APPLICABLE LAW: Rule 110, Section 14 (Amendment of Information); Rule 110, Section 12 (Name of the offended party in crimes against property); Article 315 in relation to Article 171/172, Revised Penal Code.

A – ANALYSIS & APPLICATION: The Supreme Court applied the dual framework of Rule 110, Sections 12 and 14:

1. Under Rule 110, Section 12, in crimes against property, an error in the name of the offended party is not fatal so long as the property subject of the crime is described with sufficient particularity.
2. Under Rule 110, Section 14, amendments before plea may be made in form or substance without leave of court, provided they do not charge an entirely distinct felony.

Substituting PCIBank for Caltex did not change the forged checks, the dates, the amounts, or the acts of fraudulent encashment. The defense of denial or non-forgery was completely unaffected. Because the amendment was formal and executed before arraignment, it was fully permissible under the Rules.

C – CONCLUSION & DISPOSITION: WHEREFORE, the Petition is DENIED. The Decision of the Court of Appeals sustaining the admission of the Amended Information is AFFIRMED.

IV. HOW CRIMINAL PROCEDURE EFFECTIVELY RESOLVED THE CASE

Procedural Resolution & Systemic Impact: Criminal procedure balances procedural flexibility with substantive protection (Rule 110, Sec. 12 & 14). By classifying the correction of corporate payee/victim designations in property offenses as formal amendments before plea, the Rules prevent fraudsters from exploiting inter-bank indemnity settlements to evade criminal liability.

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TOPIC 14: VENUE OF CRIMINAL ACTIONS

Governing Provision / Procedural Framework: Rule 110, Section 15; Article 360, Revised Penal Code

CASE NO. 6: Vicente Foz, Jr. and Danny G. Fajardo v. People of the Philippines

Citation: G.R. No. 167764 | Date: October 9, 2009 | Ponente: Peralta, J.

Topic Focus: Venue is Jurisdictional / Libel under Article 360, RPC / Fatal Defect in Information

I. FACTS

Vicente Foz, Jr. (a columnist) and Danny G. Fajardo (editor-publisher of Panay News) were indicted for Libel before the Regional Trial Court of Iloilo City for an article entitled 'MEET DR. PORTIGO, COMPANY PHYSICIAN,' which questioned the competence of Dr. Edgar Portigo. The Information alleged that the article was published in Iloilo City, but completely FAILED to allege either: (1) that the libelous article was *first printed and published* in Iloilo City; OR (2) that the offended party, Dr. Portigo, *actually resided* in Iloilo City at the time of the commission of the offense. Evidence at trial showed that Panay News was actually printed in Jaro, Iloilo, and Dr. Portigo resided in Passi, Iloilo. The RTC convicted both petitioners, and the CA affirmed. Petitioners elevated the case to the Supreme Court challenging the trial court's jurisdiction.

II. ISSUE

Whether the Regional Trial Court of Iloilo City acquired valid territorial jurisdiction over the Libel case when the Information failed to allege the mandatory statutory venue facts required under Article 360 of the Revised Penal Code.

III. RULING (ALAC METHOD)

A – ANSWER / ASSERTION: NO. In criminal cases, venue is an indispensable element of jurisdiction. Failure to specifically allege the venue facts under Article 360 of the RPC deprives the court of jurisdiction ab initio.

L – LEGAL BASIS / APPLICABLE LAW: Rule 110, Section 15 of the Revised Rules of Criminal Procedure; Article 360 of the Revised Penal Code (as amended by R.A. 4363); *Aglipay v. Ochoa*; *Chavez v. Court of Appeals*.

A – ANALYSIS & APPLICATION: The Supreme Court emphasized that unlike in civil procedure where venue is procedural and waivable, in criminal procedure venue is jurisdictional. A court has no legal power to try a crime committed outside its territory. Article 360 of the RPC establishes an exclusive, restrictive venue rule for written defamation to prevent the persecution of journalists: the action must be filed EITHER where the article was printed and first published, OR where the private offended party actually resided at the time of the offense. The Information against Foz and Fajardo merely alleged that the article was published in Iloilo City, omitting the word 'first' and omitting the residence of Dr. Portigo. Because the Information failed on its face to establish territorial jurisdiction, all proceedings before the RTC were null and void.

C – CONCLUSION & DISPOSITION: WHEREFORE, the Petition is GRANTED. The Decision of the Court of Appeals is REVERSED and SET ASIDE, and Criminal Case No. 44101 is DISMISSED for lack of territorial jurisdiction.

IV. HOW CRIMINAL PROCEDURE EFFECTIVELY RESOLVED THE CASE

Procedural Resolution & Systemic Impact: Criminal procedure upholds constitutional liberty and freedom of the press through strict territorial limits (Rule 110, Sec. 15). By enforcing the mandatory venue allegations under Article 360 as jurisdictional prerequisites, procedural law shields publishers and writers from being dragged into arbitrary venues and subjected to harassment suits.

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TOPIC 15: INTERVENTION OF OFFENDED PARTY

Governing Provision / Procedural Framework: Rule 110, Section 16; Rule 111, Section 1, 2000 Revised Rules of Criminal Procedure

CASE NO. 7: Lee Pue Liong a.k.a. Paul Lee v. Chua Pue Chin Lee

Citation: G.R. No. 181658, 703 SCRA 240 | Date: August 7, 2013 | Ponente: Perez, J.

Topic Focus: Intervention of Private Offended Party / Private Prosecutor / Public Crimes / Perjury

I. FACTS

Petitioner Lee Pue Liong (Paul Lee) and respondent Chua Pue Chin Lee were officers and major shareholders of Centillion Holdings, Inc. and the CKC Group of Companies. In the midst of corporate conflicts, respondent Chua filed two criminal complaints for Perjury against petitioner Lee for allegedly executing false affidavits to seize control of corporate properties. Informations for Perjury were filed before the Metropolitan Trial Court (MeTC) of Manila. During trial, petitioner Lee filed an Omnibus Motion to disqualify and exclude the private prosecutor hired by respondent Chua, arguing that Perjury is a crime against public interest (Title IV, RPC) involving no private offended party, and that private counsel has no legal standing to intervene under Rule 110, Section 16. The MeTC, RTC, and CA all sustained the private prosecutor's right to intervene.

II. ISSUE

Whether a private offended party has the legal right to intervene through a private prosecutor in the criminal prosecution of Perjury under Rule 110, Section 16.

III. RULING (ALAC METHOD)

A – ANSWER / ASSERTION: YES. Under Rule 110, Section 16 and Rule 111, Section 1, whenever a criminal act causes direct damage or injury to a private individual and civil liability is not reserved or waived, the private offended party has the absolute right to intervene through counsel, subject to the control of the public prosecutor.

L – LEGAL BASIS / APPLICABLE LAW: Rule 110, Section 16 (Intervention of the offended party in criminal action); Rule 111, Section 1; Article 100, Revised Penal Code; Articles 20, 21, and 2176 of the Civil Code; *Mercader v. Bardilas*.

A – ANALYSIS & APPLICATION: The Supreme Court ruled that under Article 100 of the RPC, civil liability ex delicto is co-extensive with criminal liability. While Perjury is classified as a crime against public interest, false declarations under oath that directly target or prejudice a private individual's corporate ownership, property rights, or personal standing inflict actionable private damage under Articles 20 and 21 of the Civil Code. Under Rule 110, Section 16, so long as the civil action has not been waived, reserved, or separately filed, the private complainant is an 'offended party' entitled to actively prosecute the case through private counsel, provided the private prosecutor remains under the direction and ultimate control of the public prosecutor.

C – CONCLUSION & DISPOSITION: WHEREFORE, the Petition is DENIED. The Decision of the Court of Appeals affirming the right of the private prosecutor to intervene in the Perjury cases is AFFIRMED.

IV. HOW CRIMINAL PROCEDURE EFFECTIVELY RESOLVED THE CASE

Procedural Resolution & Systemic Impact: Criminal procedure integrates the state's penal power with the victim's right to civil justice (Rule 110, Sec. 16 & Rule 111, Sec. 1). By recognizing that public crimes (such as Perjury) often cause severe private economic injury, the Rules empower victims to actively protect their substantive civil interests in criminal court under public prosecutorial supervision.

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